

Defendants instead raised a series of arguments that could have been raised later, by way of demurrer to the first amended complaint.

Ordinarily, the court will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party has the opportunity to attack the validity of the amended pleading; ¶ 6:688. [See *Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 CA3d 1045, 1048, 261 CR 857, 859; *Atkinson v. Elk Corp.* (2003) 109 CA4th 739, 760, 135 CR2d 433, 448—“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”]. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §§6:644—6:647, pp. 193-194.

The parties are advised that neither side’s briefs adequately address the complicated issues as to viability of the first amended complaint and the effect of the prior settlement agreement on claims not expressly addressed therein. The prior settlement agreement did not contain a general release of all known or unknown claims. But, the parties did agree to mediate any future disputes related to the settlement and included an attorneys fees clause. Neither party has compelled mediation. It occurs to the court that continued litigation to final resolution might cost far more than the value of the assets in dispute.

QUINCY TAN, D.D.S. et al. v. CITY OF FAIRFIELD et al.
Case No. CU25-12030

FAIRFIELD’s Demurrer

TENTATIVE RULING

Defendant CITY OF FAIRFIELD’s (“FAIRFIELD”) unopposed demurrer directed to Plaintiffs QUINCY TAN, D.D.S. and CAROL HADDOCK’s complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

The court observes that Plaintiffs filed a first amended complaint on June 30, 2026. An amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.) However, a party may only amend its pleading without leave of court or stipulation of the parties after a demurrer is filed if the amended pleading is filed within the time for opposition to the demurrer. (Code Civ. Proc., § 472.) CITY served its demurrer on February 4, 2026, with hearing noticed for July 8, 2026. The deadline for filing opposition to FAIRFIELD’s demurrer was June 24, 2026. (Code Civ. Proc., § 1005, subd. (b) [opposition papers due 9 court days before hearing on demurrer].) Plaintiffs did not submit a stipulation of the parties or obtain leave of court to file the first amended complaint. Plaintiffs’ submitted first amended complaint does not supersede the original complaint or moot the demurrer in these circumstances. Plaintiffs not having filed opposition to FAIRFIELD’s demurrer, the court

deems FAIRFIELD's points delineated in the demurrer conceded. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [lack of opposition to demurrer as abandonment of issue].)

As to CITY OF FAIRFIELD, the first-amended complaint is stricken as untimely. The case is dismissed and judgment is for CITY OF FAIRFIELD.

ONEMAIN FINANCIAL GROUP v CHRISTINA TAMAYO
Case No. FCM173951

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant CHRISTINA TAMAYO's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state Defendant's appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002